MUFARO CHIGWANDE
versus
PROVE CHOGOGO

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 29 June and 14 July 2026

REASONS FOR THE ORDER GRANTED ON 29 JUNE 2026

MUZENDA J:

1. ON 29 June 2026 after hearing counsel, I dismissed respondent's preliminary points and also refused applicant condonation mainly on the absence of prospects of success on appeal and also on applicant lacking an arguable case.
2. On 8 July 2026 the applicant wrote to the registrar requesting a written judgment. This is it.

3. Background

3.1. Applicant and respondent were customarily married in 2018 and the union had since been dissolved. The dispute between the parties relates to property namely a Honda Shuttle, and a rural homestead. The court *a quo* had awarded applicant a total of USD 2 500 towards her contribution as a consideration for unjust enrichment. Respondent was awarded a Honda Shuttle and a rural house. In her papers for appeal applicant prayed for the upsetting of the trial magistrate's division on the basis that there was no recognizable cause of action pleaded by the plaintiff and that respondent's claim should be dismissed. Alternatively, applicant sought on appeal an award of 50 per cent share on the values of the Honda Shuttle as well as that of the homestead, she also sought an order in t he alternative compelling respondent to buy her out within 2 months.

3.2. 0n 16 September 2025 she noted an appeal in the High Court and subsequently the appeal was set for 21 January 2026. On the date of hearing the appeal was struck off the roll for lack of compliance with the rules of this court. After it being struck off applicant filed a chamber application for condonation and extension of time. The main grounds of appeal

spelt out by applicant on the defective copy and the draft copy focuses on lack of jurisdiction on the magistrate court, that the trial court misdirected itself on distributing property which had not been evaluated first, and that the court *a quo* erred in dealing with sharing of property under customary law when respondent had not pleaded it. Applicant also attacked the order of USD2 500 awarded to her for her indirect contribution.

3.3. After looking at the judgment of the court *a quo* it occurred to me that the record reflects that applicant consented to the jurisdiction of the magistrates' court sitting as a customary law court. Given the lifestyle of the parties the court *a quo* gave reasons why general law was applicable and proceeded to consider applicant's claim of unjustified enrichment which precipitated in the awarding of USD2 500. During the hearing of the main matter before the magistrate. Applicant did not challenge the values of the assets in dispute which could have triggered the need for valuation. Applicant was competently legally represented and no issue was taken by the applicant's counsel on the aspect of the values.

4. Disposition

4.1. In the case of *Chimpondah & Anor* v *Muvami* 2007 (2) ZLR 326 (H) at 326 E it was held:

"*The factors taken into account include the length of the delay, the explanation for the delay, the merits of the application and any prejudice to the interests of justice generally*."

4.2. It is important to add that applicant must add and ought to have bright prospects of success on appeal or at least an arguable case. The issues of reasonable explanation and prospects of success must be interpreted inclusively than to be read in isolation. An applicant may have a reasonable and plausible explanation for delay but nonetheless lacking discernable prospects of success on appeal. Judged by the applicant's alternative relief sought she is in my view conceding that the court *a quo* was correct in its judgment but ought to have awarded her more than USD2 500 and the issue of respondent buying her out of the communal home's proceeds. Distribution of property and ratios is at the discretion of the court based on the evidence adduced before it and an appellate court will not willy nilly interfere with such findings of a lower court.

4.3. Using my discretion, it is on this basis that I came to a conclusion that applicant does not enjoy bright prospects of success on appeal and I declined the application with an order of costs.